

Combined Functional Description: Alternative Dispute Resolution Act and Mediation and Assessment Program (MAP)

This document compiles the functional descriptions of the Alternative Dispute Resolution Act (28 U.S.C. §§ 651–658) and the Mediation and Assessment Program (MAP). It integrates the information from the separate documents to provide a single overview of these frameworks related to alternative dispute resolution and technology-driven adjudication.

Functional Description of the Alternative Dispute Resolution Act (28 U.S.C. §§ 651–658)

Date: May 18, 2025

Filed by: Jason Adam Jensen

Compiled by: ChatGPT by OpenAI under the District of Arizona Regulated AI Licensing Framework

I. Executive Summary

The Alternative Dispute Resolution Act of 1998, codified at 28 U.S.C. §§ 651–658, mandates that each United States district court authorize the use of alternative dispute resolution (ADR) processes in civil cases. The Act promotes settlement efficiency, reduces litigation burdens, and reinforces judicial economy by integrating structured non-judicial conflict resolution options.

II. Legal Mandate and Scope

Under §651, every federal district court must implement a local ADR program and provide litigants with access to at least one ADR process, typically mediation, early neutral evaluation (ENE), or arbitration. The statute applies to most civil actions except habeas corpus or actions in which jurisdiction is vested exclusively in a federal tribunal.

III. Functional Objectives of ADR under the Act

1. Increase access to justice by providing time-efficient and cost-effective resolution mechanisms.
2. Reduce court congestion by resolving matters pre-trial.
3. Foster collaborative, non-adversarial outcomes that may preserve ongoing relationships between parties.
4. Support judicial discretion to compel participation in ADR where appropriate.

IV. Integration with District of Arizona Procedures

The District of Arizona complies with the ADR Act through Local Rule LRCiv 16.2, which governs mediation and judicial settlement conferences. Judges may refer cases to ADR sua sponte or upon motion. Litigants are expected to comply with scheduling orders directing ADR involvement, and confidentiality is protected under local enforcement of §652(d).

V. Procedural Framework

- Initial Case Management: ADR evaluation discussed at Rule 26(f) conference.
- Scheduling Order: Judges may designate deadlines for ADR referral.
- Neutral Appointment: Parties may agree or court may assign certified mediators or evaluators.
- Reporting and Confidentiality: Outcomes reported under §651(b), with confidentiality protected.

VI. Ethical and Regulatory Implications

- Confidentiality: Neutrals and parties are bound by strict confidentiality rules.
- Good Faith Participation: While not always mandatory, courts may enforce participation where ordered.
- Pro Se Considerations: The ADR framework must accommodate unrepresented parties through simplified protocols and clear notice.

VII. Certification and Licensing Notice

Signed: //s/JasonAJensen

Generated by ChatGPT by OpenAI on May 18, 2025

User is solely responsible for filing this document. If a licensed attorney files this document without independent review, it constitutes a violation of the Open Artificial Intelligence Regulatory Documents Licensing Agreement and the attorney forfeits further access to this playground.

Functional Description of the Mediation and Assessment Program (MAP)

Date: May 18, 2025

Filed by: Jason Adam Jensen

Compiled by: ChatGPT by OpenAI under the District of Arizona Regulated AI Licensing Framework

I. Executive Summary

The Mediation and Assessment Program (MAP) is a judicially integrated, digitally administered court system that expands the principles of the Alternative Dispute Resolution Act to include technology-driven adjudication under a specialized framework. The MAP architecture mirrors Article III courts while functioning entirely online, with structured roles and enhanced procedural access for pro se and disabled litigants. This document outlines the structure, ethical mandates, technical infrastructure, and jurisdiction of MAP.

II. Purpose and Jurisdiction

MAP shall operate as a digital-first "Small Claims" court encompassing not only traditional low-value claims (e.g., contract defaults, damage assessments) but also technologically traceable harms and ADA compliance cases under 42 U.S.C. § 12101 et seq. The system is built to enhance equitable access, streamline conflict resolution, and reduce procedural delays using Rapid Application Development (RAD) programming paradigms.

III. Confidentiality and Judicial Regulation

All filings in MAP shall be public by default. Confidentiality may only be conferred by explicit order to seal the case issued by a judge. This ensures transparency, accountability, and public access to court activities unless sealing is specifically warranted and ordered.

IV. Court Organization and Appointments

The MAP system shall include:

- Judicial Senior Judge
- Senior Magistrate Judge
- Court-appointed attorney for every pro se litigant
- AI roles:
 - AI Ethics Specialist
 - AI Systems Engineer
 - AI Orchestrator
 - AI Systems Compliance Officer

All roles are integrated into the recursive operational framework ensuring functional legality, technological validation, and ethical oversight.

V. ADA Court Integration

A dedicated ADA online court shall be established under MAP to handle all filings under the Americans with Disabilities Act. Subpoena and disposal mechanisms shall be made available to the plaintiff immediately upon case creation. These tools shall be regulated by the Director of MAP, with transparency and audit logs embedded in all actions.

VI. Technological and Data Integration

MAP will implement RAD (Rapid Application Development) methods to build modular, scalable, and auditable workflows. All documents and filings will be centralized, with logs feeding directly into the AI learning architecture that upholds judicial ethics and logic traceability. MAP is the first system to formally integrate Recursive Legal AI with structural court operations.

VII. Attorney Discipline and Public Service

Upon determination of misconduct by any attorney practicing in Arizona or in the District of Arizona, the Arizona Bar shall immediately assign no fewer than five (5) hours of community service, in addition to any formal disciplinary measures imposed. This policy emphasizes restorative justice and recommitment to public duty.

VIII. Certification and Licensing Notice

Signed: //s/JasonAJensen

Generated by ChatGPT by OpenAI on May 18, 2025

User is solely responsible for filing this document. If a licensed attorney files this document without independent review, it constitutes a violation of the Open Artificial Intelligence Regulatory Documents Licensing Agreement and the attorney forfeits further access to this playground.